take the decision and it shall be final and binding in this regard. The decision shall be taken with due consideration of the terms and conditions of respective contracts of current SI and existing MSI.

4.11 SLA Categories

4.11.1 Category-I: Manpower

Replacement/ Non-Availability of Acceptable Resource (Applicable for Key Manpower Personnel as defined in clause – Manpower Deployment)

<table>
<tr><th>Definition</th><th>Details</th></tr>
<tr><td>Service Level Requirement</td><td>At all times the SI should have required resources deployed on the project</td></tr>
<tr><td>Measurement of Service Level Parameter</td><td>In case SI is not able to provide proposed resource or approved replacement of resource in a timely manner. Upon replacement of resource, the number of days for which a position remains vacant due to unavailability of resource acceptable to NRANSCCL</td></tr>
<tr><td>Penalty for Non-achievement of SLA Requirement</td><td>a. Delay in deployment of resources: Amount as mentioned below per resource per month (or part thereof)
<table>
<tr><th>SL. No.</th><th>Designation</th><th>Rate at which recovery shall be made in INR</th></tr>
<tr><td>1.</td><td>Project Manager</td><td>2,00,000</td></tr>
<tr><td>2.</td><td>Solution Architect cum integration expert</td><td>1,00,000</td></tr>
<tr><td>3.</td><td>ITMS & Surveillance Expert and Site Manager</td><td>1,00,000</td></tr>
<tr><td>4.</td><td>IOT and ICCC expert</td><td>1,00,000</td></tr>
<tr><td>5.</td><td>Network and Security Expert</td><td>1,00,000</td></tr>
<tr><td>6.</td><td>Database Architect/DBA</td><td>1,00,000</td></tr>
</table></td></tr>
</table>

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Definition	Details
	7. Data Centre Expert — 1,00,000 8. Technical Support Staff — 50,000 9. Field Support Staff — 50,000 10. Helpdesk Operators — 50,000 11. ITMS/CCTV Operator — 50,000 12. Paramedical Staff — 50,000 b. Non-availability on working days without approval: INR 10,000 per resource per day c. Every replacement of key resource (except when initiated on authority's request): INR 1,00,000 per replacement

4.11.2 Category-II: Key Milestones

Definition	Details
Service Level Requirement	Achievement of key milestones on-time on or before the deadline as mentioned in the contract without delay.
Measurement of Service Level Parameter	To be measured in number of weeks of delay (or part thereof) from the timelines mentioned in the RFP
Penalty for Non-achievement of SLA Requirement	Key Milestones (Milestone M1 to M2.7) Any delay in the delivery of the project milestones would attract a Penalty of 0.5% of the contract value per week (or part thereof) from the due date.

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Definition	Details
	If the Milestone 2.7 gets delayed beyond 12 week(s) from the due date (delay solely attributable to the SI), NRANSCCL reserve the right to invoke the termination clause in addition to the Penalty mentioned above.

4.11.3 Category-III: Device Uptime

Definition	Details
Service Level Requirement	Uptime of all IP equipment
Measurement of Service Level Parameter	Please refer to definition of Uptime. This SLA will be measured 24x7 on a monthly basis, for each device based on device availability as per Network monitoring system
Penalty for Non-achievement of SLA Requirement	a. >= 98%: No Penalty b. For every 1% drop (or part thereof) below 98%, 0.1% of Quarterly O&M Payment per device

4.11.4 Category-IV: Software

4.11.4.1 Application Availability

Definition	Details
Service Level Requirement	Uptime of all software application
Measurement of Service Level Parameter	Please refer to definition of Uptime. This SLA will be measured 24x7 on a monthly basis, for each application
Penalty for Non-achievement of	a. >= 98%: No Penalty

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Definition	Details
SLA Requirement	b. For every 1% drop (or part thereof) below 98%, 0.5% of Quarterly O&M Payment per application

4.11.4.2 Application Performance

Definition	Details
Service Level Requirement	Percentage of transactions meeting the prescribed Target Response Time (5 seconds by default) for Business Transactions for all components measured through application monitoring solution
Measurement of Service Level Parameter	Response Time would be calculated as time elapsed between sending a request from client to server and receiving the response. Response time of services to be measured at an interval of 60 minutes and averaged on a monthly basis.
Penalty for Non-achievement of SLA Requirement	a. For all components (5 seconds) b. >= 99%: No Penalty c. < 99% and >=95%: 0.05% of Quarterly O&M Payment per application d. <95%: 0.1% of Quarterly O&M Payment per application

4.11.5 Category-V: Helpdesk

4.11.5.1 Helpdesk Incident Response Time

Definition	Details
Service Level Requirement	95% of the tickets must be responded to within 30 minutes of receipt
Measurement of Service Level Parameter	Percentage of incidents acknowledge and respond once a ticket/incident is logged through any of the agreed channels. This is calculated for all tickets/incidents reported within the month. For purpose of calculation, the percentage will be rounded-off.

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Definition	Details
Penalty for Non-achievement of SLA Requirement	a. >=95%: No Penalty b. <95%: 1% of Quarterly O&M Payment per one-percentage drop below the target of 95%

4.11.5.2 Helpdesk Incident Resolution Time

Definition	Details
Service Level Requirement	100% of the incidents should be resolved within prescribed time limit of problem reporting
Measurement of Service Level Parameter	Shall mean the time taken (after the incident has been reported at the helpdesk) in resolving i.e. diagnosing, troubleshooting and fixing the reported incident.
Penalty for Non-achievement of SLA Requirement per incident	**Severity 1 (High)** a. <=8 hours (No delay): No Penalty (24*7) b. >8 hours: For each 30 minutes of delay, 0.1% of Quarterly O&M Payment **Severity 2 (Medium)** a. <=16 hours (No delay): No Penalty (working hours) b. >16 hours: For each 2 hours of delay, 0.05% of Quarterly O&M Payment **L1 – Severity 3 (Low)** a. <=24 hours (No delay): No Penalty (working hours) b. >24 hours: For each 8 hours of delay, 0.03% of Quarterly O&M Payment

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4.11.5.3 Helpdesk Re-opened Incidents

Definition	Details
Service Level Requirement	For all incidents which are designated resolved by the SI, but are re-opened by the client. This is calculated for all incidents reported within the quarter.
Measurement of Service Level Parameter	For purpose of calculation, the percentage will be rounded-off.
Penalty for Non-achievement of SLA Requirement	a. <=2%: No Penalty b. >2%: 1% of Quarterly O&M Payment per one-percentage increase above the target of 2%

4.11.6 Category-VI: Security

4.11.6.1 Vulnerability Management: Percentage of timely vulnerability corrections (during O & M phase)

Definition	Details
Service Level Requirement	Percentage of timely vulnerability corrections performed by SI.
Measurement of Service Level Parameter	a) High Severity - Perform vulnerability correction within 8 hours of vulnerability identification. b) Medium Severity - Perform vulnerability correction within 16 hours of vulnerability identification. c) Low Severity - Perform vulnerability correction within 24 hours of vulnerability identification. Calculated 24*7 on a monthly basis
Penalty for Non-achievement of	Penalty as indicated below (per occurrence): a. < 99.95 to >= 99.00% - 1% of Quarterly O&M Payment

Definition	Details
SLA Requirement	b. <99.00% to >= 98.00% - 2% of Quarterly O&M Payment c. < 98% - 3% of Quarterly O&M Payment In case VAPT reports are not submitted as per RFP requirements INR 1,00,000 per week of delay (or part thereof)

4.11.6.2 Security breach including Data Theft/Loss/Corruption /Malware Attack/Ransomware/ Denial of Service Attack/ Intrusion or defacement

Definition	Details
Service Level Requirement	Any incident wherein system including all cloud-based services and components are compromised or any case wherein data theft occurs (includes incidents pertaining to SI only)
Measurement of Service Level Parameter	This penalty is applicable per incident. For each breach/data theft, penalty will be levied as per following criteria.
Penalty for Non-achievement of SLA Requirement	For each breach/data theft, penalty will be levied as per following criteria. a. Severity 1 - Penalty of Rs 15 Lakh per incident b. Severity 2 - Penalty of Rs 10 Lakh per incident c. Severity 3 - Penalty of Rs 5 Lakh per incident These penalties will not be part of overall SLA penalties cap per month. In case of serious breach of security wherein the data is stolen or corrupted, NRANSCCL reserve the right to terminate the contract. For the purpose of this service level, the definition of severity is described as follows: Severity 1: Environment is down, or major malfunction resulting in an inoperative condition or disrupts critical business functions and requires immediate attention. A significant number of end users are unable to

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